



CHAPTER xciv.

An Act to confer further powers upon the Ipswich Gas Light Company. A.D. 1903.
[21st July 1903.]

WHEREAS the Ipswich Gas Light Company (hereinafter called “the Company”) are supplying gas within the borough of Ipswich and the liberties thereof under the powers of an Act passed in the tenth year of the reign of Her late Majesty Queen Victoria (in this Act called “the Act of 1847”) and of the Ipswich Gas Act 1864 (in this Act called “the Act of 1864”) and the Ipswich Gas Act 1883 (in this Act called “the Act of 1883”, which Acts are together referred to as “the recited Acts”:

10 & 11 Vict.
c. vii.
27 & 28 Vict.
c. xvii.
46 & 47 Vict.
c. clxxii.

And whereas the parishes of Bramford Whitton Westerfield Rushmere Saint Andrew Nacton Wherstead Belstead and Sproughton adjoin the present limits of supply of the Company and are not now supplied by gas and it is expedient that the Company should be empowered to supply gas within those parishes :

And whereas in order to supply gas within the parishes and places aforesaid and to meet the increasing demand for gas within the Company’s present limits of supply it is expedient that the Company be empowered to acquire additional land and to erect gasworks :

And whereas the capital of the Company amounts to one hundred and thirty-eight thousand pounds and has been raised as ordinary capital as follows :—

Under the Act of 1847 £28,000 A stock ;

Under the Act of 1864 £50,000 B stock ;

Under the Act of 1883 £31,730 C stock being the amount of stock issued in order to raise the sum of sixty thousand pounds :

And whereas the Company has created and issued the whole of such capital and the same has been expended upon or allocated for the purposes of the undertaking :

[Price 1s.]

A

1

A.D. 1903.

And whereas the Company are authorised by the recited Acts to borrow on mortgage of the undertaking the sum of thirty-seven thousand pounds of which sum they have borrowed and now owe the sum of thirty-six thousand and eight hundred pounds :

And whereas under the Act of 1883 the rates of dividend payable by the Company were fixed and the Company were authorised to pay dividends upon the A stock at the rate of ten per centum per annum upon the B stock at the rate of seven and one-half per centum per annum and upon the C stock at the rate of seven per centum per annum subject to increase or decrease of such rates according to the decrease or increase in the price for the time being charged by the Company for gas :

And whereas it is expedient that the Company should be empowered to raise additional capital for the purposes of this Act and for the general purposes of their undertaking :

And whereas it is expedient that the other provisions herein-after contained should be made :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

PRELIMINARY.

Short title.

1. This Act may be cited as the Ipswich Gas Act 1903 and this Act and the recited Acts may be cited together as the Ipswich Gas Acts 1847 to 1903.

Incorporation of Acts.

2. The Lands Clauses Acts (except the provisions of those Acts with respect to the acquisition of lands otherwise than by agreement) and the Gasworks Clauses Act 1847 as amended by the Gasworks Clauses Act 1871 are (except where expressly varied by or inconsistent with this Act or the recited Acts) incorporated with and form part of this Act.

Application of parts of Companies Clauses Acts.

3. The clauses and provisions of the Companies Clauses Consolidation Act 1845 with respect to the following matters (that is to say) :—

The distribution of the capital of the Company into shares ;

The transfer or transmission of shares ;

The remedies of creditors of the Company against the shareholders ;

The borrowing of money by the Company on mortgage or bond; A.D. 1903.

The consolidation of the shares into stock;

The making of dividends;

The giving of notices;

The provision to be made for affording access to the special Act by all parties interested;

and Part I. (relating to cancellation and surrender of shares) Part II. (relating to additional capital) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts shall extend and apply to the Company and to the additional capital which they are by this Act authorised to raise.

EXTENSION OF LIMITS.

4. From and after the passing of this Act the limits of supply of the Company shall be extended so as to include the parishes of Bramford Whitton Westerfield Rushmere Saint Andrew Nacton Wherstead Belstead and Sroughton all in the county of Suffolk and the Company shall have and may exercise within the extended limits all and the like powers privileges and authorities for and in relation to the supply of gas and shall be subject to all and the like duties liabilities and obligations in respect thereof as they now have and are subject to within the limits of supply as defined by the recited Acts and the expression "limits of supply" in those Acts and in this Act shall from and after the passing of this Act be deemed to include the parishes hereinbefore mentioned. Extension limits of supply.

5.—(1) Any mains pipes or other works which the Company under the powers of this Act lay down or execute under or over or so as to affect any railway or railway works of the Great Eastern Railway Company shall (except in cases of emergency) be laid down and executed and subsequently maintained and repaired by the Company under the superintendence and to the reasonable satisfaction of the chief engineer of the Great Eastern Railway Company in accordance with plans and sections previously submitted to and approved by him. For protection of Great Eastern Railway Company.

(2) The Company shall restore and make good all roads over any bridges level crossings and approaches which the said Great Eastern Railway Company is or may be liable to maintain and which may be disturbed or interfered with by or owing to any operations of the Company and all works of the Company shall be constructed so as not to cause any injury to any railway or railway works of the said Great Eastern Railway Company or interruption

A.D. 1903. of the passage or conduct of the traffic over such railways or at any station thereon.

(3) If any difference arises between the Company and the said Great Eastern Railway Company or their said engineer as to the mode of laying down repairing or enlarging their mains or pipes or other works or the facilities to be afforded for the same such difference shall be settled by an engineer to be appointed by the Board of Trade at the request of either party.

CAPITAL.

Power to
raise addi-
tional capital.

6. The Company may raise additional capital not exceeding in the whole one hundred and twenty thousand pounds by the creation and issue of additional ordinary C stock or preference stock or wholly or partly by either of those methods but such stock shall not vest in the person accepting the same unless and until the full price of such stock including any premium obtained upon the sale thereof shall have been paid in respect thereof. Provided that it shall not be lawful for the Company to create and issue under the powers of this Act any greater nominal amount of additional capital than shall be sufficient to produce including any premium which may be obtained on the sale thereof the sum of one hundred and twenty thousand pounds. Provided also that of that sum the Company shall not raise a larger amount than seventy-five thousand pounds by the creation and issue of preference stock.

Restriction
as to votes
in respect of
preferential
stock.

7. Except as otherwise expressly provided by the resolution creating the same no person shall be entitled to vote in respect of any new stock to which a preferential dividend shall be assigned.

Application
of excess of
profits.

8. If the clear profits of the undertaking of the Company in any year amount to a larger sum than is sufficient to pay the interest on the mortgages debentures and debenture stock and the dividend on the preference capital (if any) and the dividend at the authorised rate on the ordinary capital of the Company the excess or such portion of it as is not carried to the insurance fund shall be carried to the credit of the divisible profits of such undertaking for the next following year.

New stock to
be offered by
auction or
tender.

9. Notwithstanding anything in this Act contained the Company shall when any stock created under the powers of this Act is to be issued and before offering the same to the holder of any other stock in the Company and whether the ordinary stock of the Company is at a premium or not offer the same for sale by public auction or by tender in such manner at such times and subject to

such conditions of sale as the Company shall determine Provided that at any such sale no single lot shall comprise more than one hundred pounds nominal value of stock and that notice of the amount of the reserve price shall be sent by the Company in a sealed letter to the Board of Trade not less than twenty-four hours before the day of auction or the last day for the reception of tenders as the case may be and such letter may be opened after such day of auction or last day for the reception of tenders and not sooner Provided also that no priority shall be allowed to any holder of stock in the Company except that if any bidding or offer by tender of any holder or holders of stock be the same in amount as any bid or offer made by any other person the bidding or offer of such holder or holders of stock shall be accepted in preference and preference may in like manner be given to any employee of the Company or any consumer of gas supplied by the Company whose bid or offer is the same in amount as any bid or offer made by any other person not being a holder of stock in the Company. A.D. 1903

10. It shall be one of the conditions of any sale of stock under this Act that the full price thereof including any premium given by any purchaser at such sale shall be paid to the Company within three months after such sale. Purchase money of capital sold to be paid within three months.

11. The intention to sell any such stock by auction or by tender shall be communicated in writing to the town clerk of the borough of Ipswich to the clerk of the district council of every district in which any part of the area of supply of the Company is situate and to the secretary of the committee of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and notice of such intention shall be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of supply. Notice to be given as to sale of stock.

12.—(1) When any stock created under the powers of this Act has been offered for sale by auction or tender and not sold the same may (if the directors of the Company think fit) be offered at the reserve price put upon the same for the purpose of sale by auction or tender to the holders of preference or ordinary stock of the Company in manner provided by the Companies Clauses Act 1863 or to the employees of the Company or to the consumers of gas supplied by the Company or partly to one and partly to another or others. Stock not sold may be offered to shareholders employees or consumers.

(2) Any stock not so offered and any stock so offered and not accepted in the case of stock offered to the holders of shares or

A.D. 1903.

stock within the time prescribed by the said Act or in the case of stock offered to such employees or consumers within the time limited by the directors of the Company may again be offered for sale by public auction or by tender in the manner and subject to the provisions of this Act with respect to the sale of stock created under the powers of this Act and at such time or times as the directors of the Company may think fit and any stock not then sold may be again offered to the holders of preference or ordinary stock or to such employees or consumers at the reserve price put upon the same at such second auction or tender and so from time to time until the whole of such stock is sold.

Application
of premiums
arising on
issue of
stock.

13. Any sum of money which shall arise from the issue of any such stock by way of premium after deducting therefrom the expenses of and incident to such issue shall not be considered as profits of the Company but shall be expended in extending or improving the works of the Company or in paying off money borrowed or owing on mortgage by the Company and shall not be considered as part of the capital of the Company entitled to dividend.

Power to
borrow in
respect of
additional
capital.

14. The Company may subject to the provisions of this Act borrow on mortgage of the undertaking in respect of the additional capital any sum or sums not exceeding in the whole one-third part of the amount at the time actually raised of the additional capital by this Act authorised to be raised but no part of any such sum or sums shall be borrowed until the whole of the capital at the time issued together with the premium (if any) realised on the sale thereof shall have been fully paid up and the Company shall have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that such capital has been issued and together with the premium (if any) has been fully paid up and upon production to such justice of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof.

Priority of
existing
mortgages.

15. All mortgages in pursuance of the powers of any Act of Parliament granted by the Company before the passing of this Act and subsisting at the passing hereof shall during the continuance of such mortgages and subject to the provisions of the Acts under which such mortgages were respectively granted have priority over all mortgages granted by virtue of this Act but nothing in this section contained shall affect any priority of the interest of any

debentures debenture stock or mortgages at any time created and issued by the Company. A.D. 1903.

16. Every provision in any Act relating to the Company passed before the present session of Parliament by which the mortgagees of the Company are empowered to enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver is by this Act repealed but without prejudice to any appointment heretofore made or to the continuance of any proceedings which may have been commenced under any such provision prior to the passing of this Act.

Repeal of provisions of former Acts with respect to appointment of receiver.

17. The mortgagees of the Company may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver. In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than five thousand pounds in the whole.

For appointment of receiver.

18. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 but notwithstanding anything therein contained the interest of all debenture stock and of all mortgages at any time created and issued or granted by the Company under this or any subsequent Act shall subject to the provisions of any subsequent Act rank *pari passu* (without respect to the dates of the securities or of the Acts of Parliament or resolutions by which the stock or mortgages were authorised) and shall have priority over all principal moneys secured by such mortgages and charged upon the undertaking. Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock.

Debenture stock.

19. The provisions of this Act with respect to disposing of stock by auction or tender shall apply *mutatis mutandis* not only to the additional ordinary stock of the Company but also to any debenture stock to be created by the Company under this Act.

Debenture stock to be sold by auction or tender.

20. All money to be raised by the Company on mortgage or by debenture stock under the provisions of this Act shall have priority against the Company and the property from time to time of the Company over all other claims on account of any debts incurred or engagements entered into by them after the passing of this Act. Provided always that this priority shall not affect any claim against the Company or their property in respect of any rentcharge granted or to be granted by them in pursuance of the

Priority of mortgages and debenture stock over other debts.

A.D. 1903. — Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to the Company which is entitled to rank in priority to or *pari passu* with the interest or dividends on their mortgages or debenture stock.

Receipt in case of persons not *sui juris*.

21. If any money is payable to a stockholder or mortgagee or debenture stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company.

Application of money.

22. All money raised under this Act by the Company whether by stock debenture stock or borrowing shall be applied only to the general purposes of the Company being in all cases purposes to which capital is properly applicable.

LANDS.

Power to use lands.

23. The Company on the lands described in the Schedule to this Act or on any part or parts thereof may make erect maintain and use gasworks and may store gas and store and convert the residual products resulting from or arising in the manufacture of gas.

Power to purchase lands by agreement.

24. The Company may for the purposes of their undertaking purchase or take on lease and hold (by agreement but not otherwise) in addition to the lands described in the Schedule to this Act and the lands now held by them under the powers of the recited Acts any lands and hereditaments not exceeding in the whole five acres which the Company may require for the purposes of or connected with their works and undertaking but the Company shall not create or permit a nuisance on any such lands and no lands shall be used by the Company for the purpose of manufacturing gas or residual products except the lands described in the recited Acts or this Act and no lands shall be used by the Company for storing gas except the lands described in the recited Acts or this Act unless the Company shall in addition to the consents required by the Gasworks Clauses Act 1871 obtain the consent of the mayor aldermen and burgesses of the borough of Ipswich.

Restriction on taking houses of labouring class.

25.—(1) The Company shall not under the powers of this Act purchase or acquire ten or more houses which on the fifteenth day of December last were occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Local Government Board ten or more houses which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied.

(2) If the Company acquire or appropriate any house or houses for the purposes of this Act in contravention of the foregoing provisions they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Local Government Board by action in the High Court and shall be carried to and form part of the Consolidated Fund of the United Kingdom Provided that the court may if it think fit reduce such penalty. A.D. 1903.

(3) For the purposes of this section the expression "house" means any house or part of a house occupied as a separate dwelling and the expression "labouring class" means mechanics artisans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any of such persons who may be residing with them.

MISCELLANEOUS.

26. Any meters fittings gas stoves gas engines and other apparatus and appliances let for hire by the company shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be Provided that such meters fittings gas stoves gas engines apparatus and appliances have upon them a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Company as the actual owners thereof. Protection of
Company's
meters &c.
from distress.

27. Every consumer of gas supplied by the Company who uses a gas engine shall if required to do so by the Company use an anti-fluctuator and shall at all times at his own expense keep such anti-fluctuator in proper order and if any consumer shall make default in complying with the provisions of this section the Company may cease to supply him with gas The Company shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removal testing inspecting and replacing to be done at the expense of the Company if the anti-fluctuator be found in proper order but otherwise at the expense of such consumer. Anti-fluctua-
tors for gas
engines.

28. The Company may contract with any local authority company or persons beyond the Company's limits of supply (but only with the consent in writing of the local authority of the Company
may contract
with local
authority &c.

A.D. 1903. district within which the supply is to be given and of any company or person supplying gas under parliamentary powers in that district) for the supply to them respectively of gas in bulk upon such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as shall be agreed upon.

Power to lay pipes in streets not dedicated to public use.

29. The Company may upon the application of the owner or occupier of any premises within the limits of supply abutting on or being erected in any street laid out but not dedicated to public use supply such premises with gas and may lay down take up alter or renew in across or along such street such pipes and apparatus as may be requisite or proper for furnishing such supply and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and apparatus and for the protection of pipes when laid shall extend and apply to pipes and apparatus laid down under the provisions of this section :

Provided that (except in cases of emergency) before any such street shall be broken up the Company shall submit to the mayor aldermen and burgesses of the borough of Ipswich for their approval the plan referred to in section 9 of the Gasworks Clauses Act 1847 and such street shall only be broken up in accordance with the plan approved by the said mayor aldermen and burgesses or in case of difference arising with reference to the plan submitted as aforesaid in accordance with such plan as may be settled by two justices under the provisions of the said section 9.

Discounts.

30. The Company may if they think fit allow discounts or rebates not exceeding in any case twenty per centum to consumers of gas in consideration of prompt payment of gas rents or of large consumption upon such scale and subject to such conditions and regulations as may be prescribed by the Company. Provided that such discounts or rebates shall be of equal amount under like circumstances to all consumers. Provided also that in the event of the Company allowing discounts or rebates in consideration of prompt payment of gas rents notice thereof shall be endorsed on every demand note for gas rents.

Power to refuse to supply persons in debt for other property.

31. If a person requiring a supply of gas from the Company has previously quitted premises at which gas was supplied to him by the Company without paying to them all gas or meter rent due from him to the Company they may refuse to furnish to him a supply of gas until he pays the same.

Gas consumers to give notice to Company before removing.

32. 'Twenty-four hours' notice in writing shall be given to the Company by every gas consumer before he shall quit any premises supplied with gas by meter by the Company and in default of such notice the consumer so quitting shall be liable to pay to the

Company the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Company to supply gas to such premises whichever shall first occur. Notice of the effect of this enactment shall be endorsed on every demand note for gas rent.

A.D. 1903.

33. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter. The amount of allowance to be made to or of the surcharge to be made upon the consumer by the Company shall be paid by or to the Company to or by the consumer as the case may be and shall be recoverable in like manner as gas rents are recoverable by the Company.

Period of
error in
defective
meters.

34. In order to enable the Company to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect:—

As to con-
struction and
placing of
pipes &c. be-
tween main
and meter.

- (1) The Company may specify the size and material of the pipes with the fittings thereof which are to be laid by the consumer between the Company's mains and the meter and (so far as the same are intended to be covered over) on the consumer's premises:
- (2) The Company may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas therein at any one time:
- (3) The specification shall be published twice in some newspaper circulating in the limits of supply and a copy thereof shall be kept exhibited in the office of the Company:
- (4) Every meter to be used in a new building or a building not previously supplied with gas or in connection with a new or substituted pipe laid by the consumer between the main and the consumer's meter shall be placed as near as reasonably practicable to the Company's main but within the outside wall of the building:
- (5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Company and the pipe shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Company. Any officer of the Company duly appointed may

A.D. 1903.
—

between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection and if the pipes or fittings are not according to the Company's specification or if the meter is not placed as required by this section the Company may refuse to supply gas to the premises until the provisions of this section have been complied with:

- (6) Any person to whom the Company refuses a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Company's specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

Notice to
discontinue
supply of
gas.

35. A notice to the Company from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office for the time being of the Company. Notice of this enactment shall be endorsed upon every demand note for gas rent.

Amendment
of section 29
of Act of
1883 as to
notice of
testing.

36. Subsection (5) of section 29 of the Act of 1883 is hereby repealed and the following provision shall have effect in lieu thereof:—

“(5) In order to enable the Company to be represented at any testing for purity and illuminating power the corporation shall give to the Company at their principal office reasonable notice in writing of their intention to make any such testing.”

Date of an-
nual general
meeting.

37. The Company may by resolution passed at a general meeting of the Company alter the date at which the general meetings of the shareholders of the Company shall be held and as from the date of such resolution section 16 of the Act of 1847 shall be and the same is hereby repealed.

Recovery of
demands
under fifty
pounds.

38. Proceedings for the recovery of any demand not exceeding fifty pounds made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in the county court.

Costs of Act.

39. All costs charges and expenses of and incident and preliminary to the applying for preparing obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

The SCHEDULE referred to in the foregoing Act.

A.D. 1903.

LANDS FOR GASWORKS.

Certain lands in the parish of Saint Clement Ipswich in the county of Suffolk containing 4 acres and 10 perches or thereabouts comprising—

- (a) the Fountain Inn and grounds attached thereto belonging or reputed to belong to J. D. Cobbold; and
- (b) dwelling-house and grounds attached thereto belonging or reputed to belong to the Company:

Which lands are bounded on the north by Myrtle Road on the west by Holywells Road and on the south and east by lands belonging or reputed to belong to J. D. Cobbold.

Printed by EYRE and SPOTTISWOODE,

FOR

T. DIGBY PIGOTT, Esq., C.B., the King's Printer of Acts of Parliament.

And to be purchased, either directly or through any Bookseller, from
EYRE AND SPOTTISWOODE, EAST HARDING STREET, FLEET STREET, E.C.; or
OLIVER AND BOYD, EDINBURGH: or
E. PONSONBY, 116, GRAFTON STREET, DUBLIN.